

Data Privacy Policy

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TechV-Flash respects the privacy rights of its employees, clients, and users. This policy aligns with the Digital Personal Data Protection (DPDP) Act of India and global standards such as the GDPR to ensure lawful data handling.

1. Scope and Definitions

1.1 Personal Identifiable Information (PII)

PII refers to any data that can identify an individual, including but not limited to names, personal email addresses, phone numbers, and government-issued identification numbers (e.g., Aadhaar, PAN, SSN).

1.2 Sensitive Personal Information (SPII)

SPII includes financial records, biometric data, health and medical records, and passwords. SPII requires the highest level of encryption and strict access controls.

2. Data Collection & Processing Principles

2.1 Lawful Basis and Consent

Data must only be collected for specified, legitimate business purposes. Explicit consent must be obtained from individuals before collecting their PII, unless another lawful basis applies (e.g., fulfillment of an employment contract).

2.2 Data Minimization

Employees must only collect the minimum amount of personal data necessary to accomplish a specific business objective. Storing excessive user data "just in case" is prohibited.

2.3 Retention Limitations

Personal data must not be kept longer than necessary. Candidate resumes must be purged from the recruitment database after 24 months unless the candidate explicitly opts in for a longer retention period.

3. Employee Obligations

Strict Prohibition on External Sharing: Employees must never share client PII or employee records with unauthorized third parties, external vendors, or unsecured AI transcription/summarization tools.

3.1 Clean Desk and Screen Policy

Physical documents containing PII must be shredded immediately after use or locked away. Screens displaying PII must be locked when unattended.

4. Data Breach Notification

4.1 The 72-Hour Rule

In the event of a suspected data breach, employees must immediately notify the Data Protection Officer (DPO) at dpo@techv-flash.com. TechV-Flash is legally obligated to report qualifying breaches to regulatory authorities within 72 hours of discovery.

5. Data Subject Rights (Rights of Data Principals)

5.1 Right to Access and Correction

Individuals have the right to request a digital copy of all PII held by TechV-Flash. They also hold the right to demand correction of inaccurate records or completion of incomplete information.

5.2 Right to Erasure (Right to be Forgotten)

Data subjects can request the deletion of their personal database entries under specific circumstances (e.g., when the consent is withdrawn, or data is no longer necessary for original business purposes).

5.3 Table of Data Subject Request (DSR) Response SLAs

DSR Request Type	Standard Response SLA	Maximum Extension Allowed	Required Verification Details
Access to personal data copies	15 Calendar Days	15 Days (With HOD notification)	Government photo ID copy, email authentication
Correction / Rectification	10 Calendar Days	None	Official supporting documents (marriage certificate, PAN)
Erasure / Deletion request	30 Calendar Days	15 Days (Legal review justification)	Written request form signed, secondary OTP validation

6. Data Privacy Impact Assessments (DPIA)

6.1 Triggering DPIA Projects

A DPIA is mandatory before launching new software development or product features that involve processing sensitive PII, large-scale biometric capture, or automated profiling.

6.2 DPO Auditing Review

The DPIA report must outline data protection risks, planned mitigation controls, and obtain final authorization from the Data Protection Officer (DPO) before deployment into production staging.

7. Cross-Border Data Transfers

7.1 Statutory Adequacy Compliance

Transferring PII outside the borders of India is strictly restricted to countries approved by the government under the DPDP Act rules. Transfers to other locations require pre-authorization or specific corporate bindings.

7.2 Standard Contractual Clauses (SCC)

All cross-border transfers to partner locations must be governed by Standard Contractual Clauses (SCCs) defining security controls and privacy obligations.

8. Third-Party Vendor Data Processing

8.1 Vendor Risk Assessment

Before onboarding any SaaS tool or external consulting vendor, a privacy and compliance risk assessment must be completed. High-risk vendors require corporate security audits.

8.2 Data Processing Agreements (DPA)

All vendor contracts involving PII access must execute a DPA. This document legally binds the vendor to notify TechV-Flash of any breaches within 24 hours.

8.3 Table of Vendor Risk Ratings & Requirements

Risk Class Rating	Example Vendor Profile	Mandatory Agreement / Security	Audit Frequency
High Risk	Third-party payroll processors, cloud hosting services, customer database tools.	Full DPA, AES-256 encryption, ISO 27001 certificate verification.	Annual Security Audit
Medium Risk	Office administrative tools, recruitment boards, CRM platforms.	Standard NDA, data retention clauses, data deletion guarantee.	Bi-annual Risk Review
Low Risk	Office stationery suppliers, marketing agency list (public content only).	Standard NDA.	None

9. Employee Personal Data Processing

9.1 PII Collected from Employees

TechV-Flash processes employee PII (academic records, financial accounts, address proofs) solely for employment contracting, payroll processing, and statutory tax compliance.

9.2 Access Restrictions

HR and Payroll records are restricted. Access is granted exclusively to HR managers and finance auditors on a need-to-know basis.

10. Privacy by Design Principles

10.1 Pseudonymization and Masking

Software engineers must ensure database records containing user contact details are masked or pseudonymized during application testing and QA development cycles.

10.2 Default Privacy Configurations

All product builds must deploy with privacy-first default settings, requiring users to explicitly opt in for supplementary profiling or newsletter mailings.

11. Compliance Audits & Training

11.1 Mandatory Annual Privacy Training

All employees must complete the annual data privacy awareness course. Failure to complete this course within 30 days of release will restrict access to staging servers.

11.2 Log Auditing and Non-compliance

The security team logs database reads. Any unauthorized data extraction or non-compliance is subject to disciplinary action, including immediate termination.

11.3 Table of Data Retention Periods by Type

Personal Data Category	Statutory Retention Period	Approved Disposal Method	Primary Purpose / Justification
FTE Employee HR Records	7 Years post-separation	Secure file shredding / digital record purging	Tax audits and legal certification verification
Recruitment Resumes (Rejected candidates)	24 Months	Digital database purging	Talent pipeline mapping
Customer Transaction Records	8 Years	Database archive & encryption	Financial audit compliance under RBI guidelines